

2026 No. 5

ROAD TRAFFIC

The A78 Trunk Road (Sharphill Roundabout) (40mph Speed Limit) Order 2026

Made - - - - *12th January 2026*

Coming into force - - *21st January 2026*

The Scottish Ministers make the following Order in exercise of the powers conferred by section 84(1)(a) of the Road Traffic Regulation Act 1984^(a) and all other powers enabling them to do so.

In accordance with section 84(2)(b) of that Act, they have given public notice of their intention to make the following Order, and have complied with Parts II and III of the Secretary of State's Traffic Orders (Procedure) (Scotland) Regulations 1987^(c).

Citation and commencement

1. This Order may be cited as the A78 Trunk Road (Sharphill Roundabout) (40mph Speed Limit) Order 2026 and comes into force on 21 January 2026.

Speed limit

2. No person may drive any motor vehicle at a speed exceeding 40 miles per hour on the length of road specified in the schedule.

Revocation

3. The A78 Trunk Road (Sharphill Roundabout) (Temporary 40mph Speed Restriction) Order 2025^(d) is revoked.

Exemption

4. No speed limit imposed by this Order applies to—

(a) 1984 c. 27; section 84(1) was substituted by the Road Traffic Act 1991 (c. 40), section 45(2). The Scottish Ministers are the traffic authority by virtue of section 121A of the Road Traffic Regulation Act 1984 (c. 27) (inserted by the New Roads and Street Works Act 1991 (c. 22) ("the 1991 Act"), schedule 8, paragraph 70 and amended by S.I. 2001/1400) as read with section 151(1) of the Roads (Scotland) Act 1984 (c. 54) (relevantly amended by S.I. 2001/1400). The functions of the Secretary of State were transferred to the Scottish Ministers by section 53 of the Scotland Act 1998 (c. 46).

(b) Section 84(2) was substituted by the 1991 Act, schedule 8, paragraph 61.

(c) S.I. 1987/2244.

(d) S.S.I. 2025/224.

- (a) vehicles falling within regulation 3(4) of the Road Traffic Exemptions (Special Forces) (Variation and Amendment) Regulations 2011^(a) when used in accordance with regulation 3(5) of those Regulations; or
- (b) vehicles being used in an emergency for coastguard purposes.

S R LEES

A member of the staff of the Scottish Ministers

177 Bothwell Street,
Glasgow
12th January 2026

^(a) S.I. 2011/935.

SCHEDULE

Article 2

SPECIFIED LENGTH OF ROAD

That length of the A78 Greenock – Prestwick Trunk Road from a point 180 metres or thereby west of Sharphill Roundabout, eastwards, including the Sharphill Roundabout circulation lanes, to a point 180 metres or thereby east of Sharphill Roundabout, a distance of 450 metres or thereby.